



THE ROAD
TEMPLATES & WORKBOOKS



Scan the code for more workbooks

Officer Quick-Reference: Collateral Consequences

A desk reference for probation, parole, and pretrial officers.

Officers are often the first person a client asks about the effects of a conviction beyond the sentence itself, and the honest answer is that these consequences are scattered across thousands of statutes and vary by state. This quick-reference is a desk aid: the main domains where collateral consequences arise, and where to send a client for authoritative, current answers. It is a starting map, not a legal opinion.

This is a general reference for professional use, not legal advice, and does not substitute for your agency's guidance or a legal determination in an individual case.

The domains where consequences arise

- Employment and occupational licensing: bars, disqualifications, and disclosure duties, many time-limited, many not.
- Housing: public and subsidized housing eligibility, and private screening.
- Public benefits: certain federal and state benefits, and student aid.
- Civic rights: voting, jury service, holding office, firearm rights.
- Family: custody, adoption, and foster-care eligibility.
- Immigration: potentially severe; always refer non-citizens to an immigration attorney.
- Driving and travel: license effects and, in some cases, passport or travel.

How to use this with a client

- ☐ Identify the specific conviction and jurisdiction; consequences turn on both.
- ☐ Use the free national inventory (see sources) to look up consequences by offense and state.
- ☐ Separate what is permanent from what is time-limited or waivable; some consequences end or can be relieved.
- ☐ Refer legal questions to counsel or legal aid; refer immigration questions to an immigration attorney without exception.
- ☐ Document what you told the client and what you referred out, per your agency's practice.

What to avoid

- Do not give a definitive legal answer on eligibility or relief; that is a legal determination.
- Do not assume a consequence is permanent; many can be lifted, waived, or expire.
- Do not overlook immigration stakes for non-citizen clients.

Quick lookup notes

Client's conviction and jurisdiction:

Consequences identified and referrals made:

Sources and further reading: *National Inventory of Collateral Consequences of Conviction* (niccc.nationalreentryresourcecenter.org), a free database built by the American Bar Association under a U.S. Department of Justice grant. Not legal advice.

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

More free tools and guidance: hub.newphysician.org/templates · bustedbythefed.com · whitecollaracademy.com

The Road · Templates & Workbooks